

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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CASSANDRA GREENE,

SUMMONS

Plaintiff, Index No.:

-against-

The Basis of Venue is:  
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE OFFICER  
SHALIMAR SCRIBNER, Shield No. 20375, and NYPD  
POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10,

Plaintiff designates Kings  
County as the place of trial.

Defendants.

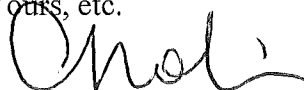
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**To the above named Defendants:**

**You are hereby summoned** to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
July 8, 2021

Yours, etc.



CAITLIN ROBIN, ESQ.  
CAITLIN ROBIN AND ASSOCIATES PLLC  
Attorneys for Plaintiff  
30 Broad Street Suite 702  
New York, New York 10004  
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER RICHARD SHALIMAR SCRIBNER, Shield No. 20375,  
83rd Precinct, Detective Squad; 480 Knickerbocker Avenue, Brooklyn, NY 11237

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

----- X

CASSANDRA GREENE,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER  
SHALIMAR SCRIBNER, Shield No. 20375, and NYPD  
POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff CASSANDRA GREENE, by her attorneys, Caitlin Robin & Associates, PLLC,  
as and for her Verified Complaint herein, alleges upon information and belief as follows:

### **PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On April 29th, 2020, at approximately 4:00 a.m., plaintiff CASSANDRA GREENE, while lawfully in the vicinity of 1900 Sterling Place in Brooklyn, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiff was subjected to loss of her job, causing her to suffer significant financial loss as well as mental and emotional injury. Plaintiff was unlawfully imprisoned at the 73rd Precinct Police Station and Kings County Central Bookings for approximately 30 hours before she appeared before a judge and was released on her own recognizance. Plaintiff was denied the right to due process and a fair trial for false charges, which were dismissed and sealed on or around February 8, 2021. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, subjected to excessive force, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

### **PARTIES**

2. Plaintiff CASSANDRA GREENE is a resident of the state of New York.
3. NYPD POLICE OFFICER SHALIMAR SCRIBNER, SHIELD NO. 20375, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. NYPD POLICE OFFICER SHALIMAR SCRIBNER, SHIELD NO. 20375, was at all times relevant herein, assigned to the 73rd Precinct.
5. NYPD POLICE OFFICER SHALIMAR SCRIBNER, SHIELD NO. 20375, is being sued in his individual and official capacities.
6. NYPD POLICE OFFICERS JOHN DOE NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
7. NYPD POLICE OFFICERS JOHN DOE NUMBERS 1-10 were at all times relevant herein, assigned to the 49th Precinct.
8. NYPD POLICE OFFICERS JOHN DOE NUMBERS 1-10 are being sued in their individual and official capacities.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
11. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.
12. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on April 2, 2021.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

### **STATEMENT OF FACTS**

16. On April 29th, 2020, at approximately 4:00 A.M., Plaintiff was lawfully present in the vicinity of 1900 Sterling Place in Brooklyn, New York, when the defendant police officers unlawfully stopped, questioned, searched, and falsely arrested Plaintiff without probable cause or legal justification.

17. For four years prior to as well as on the day of the relevant incident, Plaintiff was employed full-time as a Security Guard Supervisor for Help USA, located in Brooklyn, NY.

18. On April 29, 2020, Plaintiff had just finished her shift at work and was waiting for her friend in the passenger seat of his vehicle, which was parked near his home in the vicinity of 1900 Sterling Place.

19. Plaintiff observed an NYPD vehicle pull up beside the vehicle on the driver's side, and saw three uniformed police officers exit the vehicle.

20. The defendant officers approached the plaintiff on the passenger side, opened her door, and pulled her from the vehicle.

21. The defendant officers then asked the plaintiff if she knew she was sitting in a stolen vehicle, and the plaintiff replied that she did not think it was stolen.

22. It was at this point that the defendant NYPD officers began to unlawfully arrest the plaintiff, restraining her with metal handcuffs and subjecting her to an unlawful pat-down search.

23. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

24. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

25. Plaintiff did not resist arrest.

26. The Defendant Officers then placed the Plaintiff in the back of an NYPD vehicle and transported her against her will to the 73rd Precinct, where she was unlawfully fingerprinted, photographed, searched, and placed in a holding cell.

27. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

28. While in custody at the 73rd Precinct, the Plaintiff was interrogated by defendant officers about her knowledge of her friend's vehicle. The plaintiff willingly answered their questions, stating that she had been with him the month prior when he purchased the vehicle from a police auction, so she knew the vehicle to be legally his.

29. The following day, April 30, 2020, the plaintiff was transported to Kings County Central Bookings where she was informed for the first time that she was being charged with Possession of a Firearm, and placed in a holding cell.

30. The car that Plaintiff was arrested in was in fact not stolen, and did legally belong to her friend.

31. The defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

32. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that the plaintiff was guilty of Criminal Possession of a Weapon.

33. On May 1, 2020, after approximately 32 hours in custody, the Plaintiff appeared in criminal court and was released on her own recognizance.

34. Due to the pending criminal charges the state suspended the plaintiff's security license, which resulted in the loss of her job with Help USA.

35. The charges which were falsely made against the Plaintiff by the defendant officers were finally dismissed and sealed on or around February 8, 2021.

36. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological, economic, and emotional trauma.

## **FIRST CAUSE OF ACTION**

### **Violation of Plaintiff's Fourth and Fourteenth Amendment Rights**

37. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

38. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

39. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

## **SECOND CAUSE OF ACTION**

### **False Arrest and False Imprisonment**

40. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

42. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York and the United States Constitution.

43. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

44. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

45. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **THIRD CAUSE OF ACTION**

#### **Unlawful Stop, Question, and Frisk**

46. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The illegal approach, pursuit, stop, questioning, and frisk employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

48. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

49. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

### **FOURTH CAUSE OF ACTION**

#### **Unlawful Search**

52. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The illegal approach, pursuit, stop, and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

54. Defendants lacked probable cause to search Plaintiff.

55. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **FIFTH CAUSE OF ACTION**

#### **Violation of Plaintiff's Fifth and Fourteenth Amendment Rights**

##### **Denial of Right to Fair Trial/Due Process**

59. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein

60. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

61. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

62. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

63. In withholding/creating false evidence against Plaintiff CASSANDRA GREENE, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

64. As a result of the foregoing, Plaintiff CASSANDRA GREENE sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, loss of earnings, emotional distress, embarrassment and humiliation, and deprivation of her constitutional rights.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.



66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

67. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to financial, emotional, and psychological injuries.

## **SIXTH CAUSE OF ACTION**

### **Violation of Plaintiff's Fourth And Fourteenth Amendment Rights**

68. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. The use of excessive force by defendants by, amongst other things, tightly handcuffing her, constituted objectively unreasonable physical seizures of Plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

70. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

## **SEVENTH CAUSE OF ACTION**

### **Negligent Infliction of Emotional Distress**

71. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff, CASSANDRA GREENE. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

73. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

74. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

77. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **EIGHTH CAUSE OF ACTION**

#### **Negligent Hiring, Retention, Training and Supervision**

78. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

80. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **NINTH CAUSE OF ACTION**

#### **Failure to Intervene**

81. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene

on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

83. Defendants failed to intervene to prevent the unlawful conduct described herein.

84. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subject to unlawful search and other physical constraints.

85. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

88. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, financial, emotional and psychological injuries.

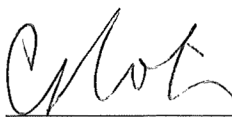
### **JURY DEMAND**

89. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

### **PRAYER FOR RELIEF**

**WHEREFORE**, Plaintiff CASSANDRA GREENE demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York  
July 8, 2021

By:   
CAITLIN ROBIN, ESQ.

CAITLIN ROBIN AND ASSOCIATES PLLC  
Attorneys for Plaintiff  
30 Broad Street Suite 702  
New York, New York 10004  
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

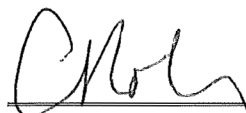
NYPD POLICE OFFICER SHALIMAR SCRIBNER, Shield No. 20375, 83rd Precinct,  
Detective Squad; 480 Knickerbocker Avenue, Brooklyn, NY 11237

**ATTORNEY'S VERIFICATION**

**CAITLIN ROBIN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York  
July 8, 2021

  
\_\_\_\_\_  
CAITLIN ROBIN